Convention.].)

On reply, plaintiff argues "Dr. McLaughlin's current physical address cannot be verified with the certainty required for formal international service," and that, as a result, the Hague Service Convention "does not apply." Plaintiff cites **no** authority for these assertions. She further submits a second declaration from counsel and a request for judicial notice with the reply papers. To the extent the evidence is new (some appears duplicative), plaintiff does not explain why it was not submitted with the initial motion papers. New arguments and evidence cannot be raised in a reply. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) Even if considered, the evidence on reply does not change the result.

The motion is **denied.**

6. 9:00 AM CASE NUMBER: C24-00866
CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.
***HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**
FILED BY: SINGER, KEVIN
****TENTATIVE RULING:****

This Motion is **continued** to May 20, 2026 at 9:00 a.m. The Court has received and reviewed the (1) Objection to the Receiver's Final Accounting Report filed by Intervenor Patti O'Brien, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court requests that the Receiver prepare, file and serve replies to both of these filings at least five court days before the continued hearing. No further briefings are requested by the Court. No appearance is required on April 22, 2026.

7. 9:00 AM CASE NUMBER: C24-01054
CASE NAME: SLIVER'S, LLC VS. CL LA FIESTA SQUARE CA LP
HEARING ON SUMMARY MOTION DEPT 16 NOTE: MSJ PAPERWORK TO BE FILED ON 12/1
FILED BY:
****TENTATIVE RULING:****
The hearing on this motion is continued to May 6, 2026 at 9:00 a.m. in Department 16. No appearance is required on April 22, 2026.

8. 9:00 AM CASE NUMBER: C24-01216
CASE NAME: SAM CHELLAKAN VS. JOHN SATHRI
***HEARING ON MOTION IN RE: EXPUNGE PLAINTIFF'S NOTICE OF PENDENCY OF ACTION**
FILED BY: SATHRI, JOHN E.
****TENTATIVE RULING:****

Before the Court is Defendant John E. Sathri's Motion to Expunge Plaintiff's Notice of Pendency of Action.

Factual Allegations and Background

This matter pertains to a purported agreement to purchase real property located at 30-32 Century Oaks, in San Ramon, California (the "Property"). In May 2019, Defendant informed Plaintiff that he was considering acquiring the Property to establish a church. (¶ 11.)

"In May 2019, Defendant orally proposed an investment to Plaintiff and a third unidentified individual wherein they would acquire and jointly own the Property. Under the proposal, Sathri would make a $628,000.00 investment for a 50% ownership interest in the Property, Chellakan would make a $348,889.00 investment for a 27.78% ownership interest in the Property, and the third individual would make a $279,111.00 investment for a 22.22% ownership interest in the Property." (¶ 12.)

It is alleged that Chellakan accepted Sathri's proposal. (¶ 13.) Thereafter, on May 13, 2019, Chellakan made an initial payment of $65,000.00 to Sathri for Chellakan's ownership interest in the Property. (¶ 14.) That same date, Sathri emailed Chellakan to confirm the receipt of the $65,000 "for investment in" the Property. (*Ibid.*) On May 15, 2019, Sathri put the parties' agreement for ownership of the Property in writing. (¶ 16.)

In late 2019, the third individual withdrew from the investment. (¶ 17.) At that time, Chellakan and Sathri agreed to amend their agreement so that Sathri would assume ownership of the third individual's 22.22% ownership interest in the Property and have a 72.22% interest in the Property and Chellakan would have a 27.8% interest in the Property. (¶ 17.)

Between May 2019 to July 2024, Plaintiff paid a total of $504,900 Sathri as consideration for Plaintiff's 27.78% ownership interest in the Property and for various expenses purportedly incurred by Sathri with respect to the Property. (¶ 15.) On November 17, 2021, a Grant Deed was recorded granting title to the Property to Sathri and his wife. (¶ 18.) Since December 2021, Plaintiff has made numerous oral and written requests to have his name added to the title – which has not occurred. (¶¶ 19-20.)

There are additional allegations relating to a promissory note, which are not relevant to this demurrer.

Legal Standard

"[A] lis pendens is recorded by someone asserting a real property claim, to give notice that a lawsuit has been filed which may, if that person prevails, affect title to or possession of the real property described in the notice." (*Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066, 1069, citing CCP §§ 405.2, 405.4, 405.20.) Under Code Civ. Proc. § 405.30, at any time after a notice of pendency of action has been recorded, any party with an interest in the real property may apply to the Court to expunge the notice.

"The expungement statutes provide that a lis pendens may be expunged on three grounds: (1) 'the pleading on which the notice is based does not contain a real property claim' (Code Civ. Proc., § 405.31); (2) 'the claimant has not established by a preponderance of the evidence the probable validity of the real property claim' (Code Civ. Proc., § 405.32); or (3) 'adequate relief can be secured to the claimant by the giving of an undertaking' (Code Civ. Proc., § 405.33)." (*Carr v. Rosien* (2015) 238 Cal.App.4th 845, 857.) Probable validity is met when the Plaintiff establishes their claim by a preponderance of the evidence. (Code Civ. Proc., § 405.32.)

"Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim." (*Kirkeby v. Superior Court* (2004)

33 Cal.4th 642, 647 citing Cal. Code Civ. Proc. § 405.30.)

The party prevailing on an expungement motion must be awarded reasonable attorney fees and costs incurred in making or opposing the motion unless the court finds the other party acted with "substantial justification" or that other circumstances make the imposition of attorney fees and costs "unjust." (Code Civ. Proc., § 405.38.)

Analysis

As noted above, a "lis pendens may be expunged if the action does not contain a real property claim ***or*** the claimant fails to establish the probable validity of the real property claim." (*Newell v. Superior Court* (2024) 107 Cal.App.5th 728, 735 quoting *De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1275 emphasis added.) Defendant argues both prongs of this analysis.

Real Property Claim

As to the first ground, "the court must expunge a lis pendens if the court finds the pleading on which the lis pendens is based does not contain a real property claim." (*Newell*, 107 Cal.App.5th at 735.) "In determining whether a pleading contains a real property claim, the court engages in 'a demurrer-like analysis.'" (*Ibid.* quoting *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647-48.) "Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim." (*Kirkeby* 33 Cal.4th at 648 citations omitted.) "Review 'involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer.'" (*Ibid.* citations omitted.)

Defendant argues that the "only cause of action in the Complaint that claims an interest in the Property is Plaintiff's first cause of action for breach of contract…." (Mtn at 2:18-21; 4:22-25.) He asserts that all the other claims "only seek monetary damages." (Mtn at 5:1-2.) Defendant notes that its demurrer to the breach of contract cause of action was sustained without leave to amend. As such, Defendant contends there are no 'real property claims' left in the SAC.

In opposition, Plaintiff argues that there are still three causes of action that assert a real property claim. First, the false promise (2nd CoA) and promissory estoppel (3rd CoA) claims are based on Defendant's false promise "that Chellakan would receive a 27.78% ownership interest in the Property in exchange for a $348,889.00 investment." (¶¶ 29, 36.) Likewise, the breach of fiduciary duty 4th (CoA) relates to Sathri's alleged undue influence over Chellakan allowing him to take Chellakan's money but "not granting Chellakan a promised 27.78% ownership interest in the Property…." (¶ 42.) Each of these causes of action seek, among other things, "imposition of a constructive trust and/or an equitable lien against the Property." (Prayer ¶ 5.)

Shoker v. Superior Court (2022) 81 Cal.App.5th 271, cited by both parties, is instructive. There, plaintiff's causes of action included claims that the defendant wrongfully acquired the property at issue via a conspiracy involving fraud and breaches of fiduciary duties. Plaintiffs alleged they were "entitled to a constructive trust returning those same real properties to them." (*Id.* at 282.) The Court of Appeal found that such claims fall "squarely within the plain language of the statute: it 'would, if meritorious, affect … title' to real property." (*Ibid.*)

Defendant argues that *Shoker* examined a long line of cases and determined that they held that "allegations of equitable remedies, even if colorable, will not support a lis pendens if, ultimately, those allegations act only as a collateral means to collect money." (*Id.* at 279-81.) While this is true, the *Shoker* court went on to examine the basis for that line of cases. It analyzed the approach set forth in *BGJ Associates v. Superior Court* (1999) 75 Cal.App.4th in detail, noting that the *BGJ* court ultimately found that 'plaintiffs who combine a real property claim with claims seeking money damages are not entitled to maintain a lis pendens on real property pending trial." (*Id.* at 280.) This position Defendant agrees with.

The *Shoker* court, however, continued by noting that "the *BGJ Associates* court's approach has since been discredited." (*Ibid.*) The *Shoker* court noted that the California Supreme Court in *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642 "implicitly discredit[ed] the approach employed by *BGJ Associates.*" (*Id.* at 281.) The *Kirkeby* court noted that the complaint included a fraudulent conveyance claim which, by definition, will affect title to or possession of real property.' (*Ibid.*) "The fact that plaintiffs asserted 27 total causes of action, most of which sought damages, made no difference." (*Ibid.*)

Ultimately, the *Kirkeby* court determined that section 405.31 "limits the court's review to the pleadings to determine whether the allegations state a real property claim as defined by section 405.4." (*Ibid.*) The *Kirkeby* court rejected the idea that "it should look past the fraudulent conveyance claim to discern the plaintiffs' overarching purpose." (*Ibid.*)

Here, Defendant argues that Plaintiff's claims do not assert a real property claim because he also seeks monetary damages. The California Supreme Court in "*Kirkeby* rejected the argument that a court may disregard a well-pleaded real property claim simply because the plaintiff also seeks money damages." (*Shoker*, supra, 81 Cal.App.5th at 282.) "Moreover, section 405.4 does not restrict a lis pendens to actions where a real property claimant *only* seeks title to, or possession of, specific real property." (*Ibid.*)

Plaintiff's fraud, promissory estoppel, and/or breach of fiduciary duty claims assert real property causes of action in that they are based on a promise to give Plaintiff an ownership interest in the Property and Plaintiff seeks a constructive trust and/or equitable lien against the Property, which would "affect [] title to, or the right to possession of, specific real property…." (Code Civ. Proc. § 405.4.)

On Reply, Defendant curiously argues that "Chellakan has not plead a cause of action for false promise, promissory estoppel, or breach of fiduciary duty, so even if those claims do involve a real property claim, they are not adequately plead in the SAC." (Reply 5:4-6.) This argument is in direct contradiction to this Court's earlier rulings on Defendant's demurrers to the FAC and SAC. With respect to the FAC, Defendant demurred to the false promise, promissory estoppel, and breach of fiduciary duty claims. The Court **overruled** the demurrer to the false promise and promissory estoppel claims. The Court sustained the demurrer to the breach of fiduciary duty claim, and granted Plaintiff leave to amend.

Plaintiff then filed the SAC which contains those same three causes of action (among others). Defendant did not demurrer to the false promise and promissory estoppel causes of action – thereby conceding they were adequately pled. Defendant did demurrer to the breach of fiduciary duty claim – which the Court **overruled**. Accordingly, Defendant's arguments are wholly without merit.

Likewise, Defendant's claim that those causes of action are basically a "breach of contract cause of action in disguise; and, this Court already dismissed the breach of contract cause of action," thereby apparently implying that those three causes of action are likewise not properly pled is baseless. The Court specifically addressed Defendant's arguments relating to each cause of action separately and found that the allegations do not support a breach of contract claim but ***do in fact*** support the causes of action for false promise, promissory estoppel, and breach of fiduciary duty. Those causes of action have separate legal elements – and the failure to properly allege one cause of action (e.g. breach of contract) does not in any way indicate that the others are not properly pled.

Defendant's outline and discussion of the Court's analysis regarding the breach of contract cause of action (Reply at 4:5-25) in no way impacts the separate analysis for the other causes of action. Also, Defendant's repeated contention that the "proposal (or promise) wasn't made to just Chellakan, it was made to Chellakan *and* a third individual, *and* it was rejected by the third individual," is not an accurate summary of the totality of the allegations of the SAC. The SAC makes clear that *after* the third individual rejected the proposal "Chellakan and Sathri agreed to amend their agreement so that Sathri would assume ownership of the third individual's 22.22% ownership interest in the Property and have a 72.22% interest in the Property and Chellakan would have a 27.78% interest in the Property." (¶ 17.) In other words, as this Court previously explained in its earlier rulings on Defendant's demurrers, after the proposed contract was abandoned, it is alleged there was a *separate agreement* between Plaintiff and Defendant that Plaintiff would obtain a 27.78% interest in the Property for his investment. This is what (in part) differentiates the breach of contract cause of action from the other causes of action.

Based on the above, the Court finds that the SAC that forms the basis of the lis pendens contains a real property claim.

Probability of Prevailing

"'If the claimant *does* plead a real property claim, but the claim pleaded has no evidentiary merit, the lis pendens must be expunged upon motion under [Code of Civil Procedure §] 405.32.' [Citation.]" (*La Jolla Group II v. Bruce* (2012) 211 Cal.App.4th 461, 475; see also *Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1011-1012.) Under section 405.32, "the court shall order that the notice be expunged if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the real property claim." "Probable validity" means "it is more likely than not that the [plaintiff] will obtain a judgment against the defendant on the claim." (Code of Civil Procedure §405.3.)

To determine probable validity the court must look beyond the Plaintiff's pleadings and examine the factual merit of the claim – in effect, forecast the probable outcome at trial. In essence, the Code "requires a minitrial on the merits for making a probable validity finding, not a 'quasi demurrer-like analysis.'" (*De Martini v. Superior Court* (2024) 98 Cal.App.5th 1269, 1280.) "Nothing in the statute indicates the claimant is only required to make a prima facie case regarding the probable validity of the real property claim. Rather, the statute expressly states the standard is preponderance of the evidence." (*Ibid.* citing Cal. Code Civ. Proc. § 405.32.)

To support his claims, Plaintiff submits his declaration which reasserts that he and Defendant agreed that he would obtain a 27.78% ownership interest in the Property in exchange for his investment of capital. (Chellakan Decl. ¶ 5-6.) On May 13, 2019, Plaintiff make an initial payment of $65,000, which he describes as "for my ownership interest in the Property." (*Id.* ¶ 7.) On that same date, Defendant sent an email to Plaintiff stating: "This is confirm that you transferred 65 K today ***for investment in*** to 30-32 Century Oaks Ct, San Ramon Property. Thank you!" (*Id.* ¶ 8, Ex. 1 emphasis added.) Thereafter, Plaintiff continued to make payments to Defendant, totaling $504,900.00 "as consideration for [his] 27.78% ownership interest in the Property and for various expenses" related to the Property. (¶ 9.) Despite this, he has not received his ownership interest in the Property. (¶12-13.) Instead, a Grant Deed was recorded indicating the Property was owned by Defendant and his wife. (¶ 10.)

On Reply, Defendant again argues that Plaintiff has failed to allege a real property cause of action – which have already been addressed above. He then argues that the documents attached to the declaration are not authenticated and the "declaration does not even refer to or mention the documents at all." (Reply 6:4-5.) Again, this is factually inaccurate. In fact, Mr. Chellakan's declaration specifically cites to and quotes from the May 13, 2019, email and declares that a "true and correct copy of this email is attached hereto as Exhibit 1." (¶ 8.) As Mr. Chellakan is a party to the email his statements can and do authenticate the document. Defendant's 'objection' – to the extend statements in reply papers can be considered a proper objection – is without merit.

Defendant does not produce any evidence in reply to contradict Plaintiff's evidence. For example, there is no declaration from Defendant disputing any of the evidence provided by Plaintiff.

Plaintiff has presented evidence supporting his real property related claims. Defendant has failed to dispute any of that evidence and has failed to submit any contradictory evidence that would weigh against Plaintiff's evidence. Thus, based on the records before it on this motion, the Court finds that Plaintiff has met his burden to show that he is likely to prevail on his real property claim(s).

Undertaking

Defendant's whole argument regarding an undertaking is that if Plaintiff can show that the SAC "does state a real property claim and satisfy his burden of proof establishing the probable validity of such a claim, adequate relief can be secured by giving an undertaking." (Mtn at 6:24-27.) There is no analysis of the issue. Nor is there any evidence submitted upon which the Court can make any determination as to what amount would provide "adequate relief" to Plaintiff.

Attorney Fees

California Code of Civil Procedure section 405.38 provides:

> The court shall direct that the party prevailing on [a motion to expunge a lis pendens] be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

Plaintiff's counsel requests attorney fees in the amount of $4,712.50 based on their time spent reviewing the motion, preparing the opposition, opposing the *ex parte* related to this motion, and time expected to be spent reviewing the reply and preparing for/appearing at the hearing on this matter. (Wiener Decl. ¶ 2.) He details the time spent on each task and his billing rate. (*Ibid.*)

The Court finds that Plaintiff is the prevailing party. The Court also finds that Plaintiff's request for attorney's fees is reasonable. As such, the Court awards Plaintiff $4,712.50 in attorney's fees.

Conclusion

Defendant's motion to expunge the lis pendens is **denied**. As the prevailing party, Plaintiff is awarded $4,712.50 in attorneys' fees, payable within 30 days of entry of this order.

9. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
***HEARING ON MOTION FOR DISCOVERY PLAINTIFFS NOTICE OF MOTION AND MOTION TO COMPEL DEFENDANT UNITED PARCEL SERVICE, INC. TO PRODUCE CONTACT INFORMATION IN RESPONSE TO PLAINTIFFS INTERROGATORIES**
FILED BY: EVERS, BILLY
****TENTATIVE RULING:****
Summary

The following discovery motion is scheduled to be heard on by the Court on April 22, 2026 at 9:00 a.m. in Department 16:

1. Plaintiffs Billy Evers, Darien Robinson, and Tracy Turner ("Plaintiffs") Motion to Compel Defendant United Parcel Service, Inc. ("Defendant" or "UPS") to produce contact information in response to Plaintiffs' Interrogatories, filed on November 26, 2026.

The Court's register of events also demonstrate that Plaintiff has calendared hearings on the following discovery motions in Department 16 on September 16 and September 30, 2026.

2. Plaintiffs' Motion to Compel Defendant UPS Further Responses to Form Interrogatories-Employment and Special Interrogatories, filed on March 27, 2026.
3. Plaintiff's Motion to Compel Defendant UPS's Further Responses to Plaintiff's Request for Production of Documents, filed on March 27, 2026; and

The Court **vacates** all three (3) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling. No appearance is required at the hearing on April 22, 2026.

Background

This case involves allegations of race-based and sex/gender-based harassment, discrimination and retaliation against Plaintiffs Billy Evers, Darien Robinson and Tracy Turner (collectively "Plaintiffs") by Defendants while working at Defendant United Parcel Service, Inc.'s (hereinafter "Defendant UPS")